

10 & 11 ELIZ. 2

No. 1

A MEASURE passed by the National Assembly of the Church of England.

To make further provision for the establishment of tables of ecclesiastical fees, to relieve certain clerks in Holy Orders from the liability to pay certain fees and for purposes connected therewith. [3rd July, 1962]

Framing
of orders
relating to
fees payable
to legal
officers.

1.—(1) A Fees Committee constituted in accordance with the provisions of subsection (3) of this section may frame orders relating to fees to be demanded, taken and received by any legal officer for the performance by him of the duties of his office, which expression includes—

- (a) specific duties including duties imposed by any Act or Measure passed before or after the passing of this Measure either on the legal officer or on any other person who delegates these duties to him, and
- (b) in the case of the legal secretary of an archbishop or bishop general duties of giving advice and assistance to the archbishop or bishop, in which case the fee shall be a sum specified in the order payable annually, and where more than one person holds such office in any one province or diocese the total amount payable to all such persons shall be the sum specified in the order.

(2) For the purposes of this Measure the expression “legal officer” means any person who carries out the duties of a legal officer in respect of work relating to the province of Canterbury, the province of York, or any diocese, archdeaconry or cathedral church within either of the said provinces, and is by law or custom required or permitted to act.

(3) Whenever the Archbishop of Canterbury and the Archbishop of York are of opinion that it is desirable that an order or orders should be framed under the provisions of this section they shall request the Lord Chancellor to appoint a person who is or has been a Judge of the Supreme Court or who is or has been a Judge of County Courts, the Chairman of the Bar Council to appoint a barrister and the President of the Law Society to appoint a solicitor, and the three persons so appointed shall be the Fees Committee until such time as they report to the Archbishop of Canterbury and the Archbishop of York in writing that in their opinion it is inexpedient

that any order under the provisions of this section or any further such order should be framed for the time being, whereupon the Fees Committee shall be discharged until further appointments are made under the provisions of this subsection.

(4) An order framed under the provisions of this section may establish tables of fees, whether by way of substitution for or variation of any existing table of fees or otherwise, and may revoke in whole or in part, alter or add to any order framed under the provisions of this section or any table of fees in operation at the passing of this Measure, and may contain such incidental provisions as may be necessary or desirable.

(5) Any fee payable under an order made under the provisions of this section shall be recoverable as a debt due by proceedings in the County Court.

2.—(1) The Commissioners shall frame an order establishing a table of parochial fees, which shall, subject to the provisions of subsection (4) of this section and section nine of this Measure, apply in all parishes in the provinces of Canterbury and York, and after such order comes into operation may frame further orders in substitution for any order framed under the provisions of this section or revoking in whole or in part or altering or adding to the same.

Framing
of orders
relating to
parochial
fees.

(2) For the purposes of this Measure the expression "parochial fees" means any fees payable to a clerk in Holy Orders, parish clerk, sexton or other person performing duties in connection with a parish or to a parochial church council for or in respect of the solemnisation or performance of Church offices, the erection of monuments in churchyards, such other services or matters as may by law or custom be now included in a table of parochial fees, and such other services or matters of a like nature for which in the opinion of the Commissioners the payment of fees is appropriate.

(3) An order framed under the provisions of this section may contain such incidental provisions as may seem necessary or desirable, may provide for the payment of special or increased fees for special services and may provide that the amount of any fee specified in the order may be determined in each case by the chancellor of the diocese in the light of the circumstances of the particular case.

(4) No order framed under the provisions of this section shall be binding upon a clerk in Holy Orders, or a parish clerk, or a sexton or any other person performing duties in connection with a parish, who at the passing of this Measure holds office or performs duties in connection with a parish for which a table of fees has not been established in

accordance with the provisions of section one of the Ecclesiastical Commissioners (Powers) Measure, 1938, without the consent of that person in writing for so long as he holds such office or performs such duties in that parish, but such consent when given shall be irrevocable.

(5) Subject to the provisions of the preceding subsection, where a licence of a chapel for the publication of banns of marriage and the solemnisation of marriage granted under the provisions of section twenty of the Marriage Act, 1949, includes a provision fixing a fee for the solemnisation of a marriage or the doing of any act for which a fee is prescribed by any order made under the provisions of this section of this Measure, the fee prescribed by such order shall be the fee payable, but any provision in the licence specifying the person or persons to whom the fee is payable shall continue to have effect, and where the fee is payable to two or more persons the fee prescribed in such order shall be payable to the same persons in the same proportions as under the provisions of the licence, or as near the same proportions as may conveniently be.

(6) During a vacancy in a benefice fees which but for the vacancy would be paid to the incumbent shall be paid to the sequestrators as part of the income of the benefice.

(7) Any parochial fee whether payable at the passing of this Measure or established by an order made under the provisions of this section shall be recoverable as a debt due by proceedings in the County Court.

(8) No table of fees established under this section shall extend to any matter in respect of which a table of fees may be made under section three of the Burial Act, 1900, or section twelve of the Cremation Act, 1902.

Coming into
operation
of orders.

3.—(1) Every order framed in pursuance of either of the two preceding sections of this Measure shall be laid before the Church Assembly and shall not come into operation unless it has been approved by the Church Assembly.

(2) The Statutory Instruments Act, 1946, shall apply to any order approved by the Church Assembly under the last foregoing subsection as if it were a statutory instrument and were made when so approved, and as if this Measure were an Act providing that any such order should be subject to annulment in pursuance of a resolution of either House of Parliament.

Transfer of
liability for
certain fees
paid by
clerks in
Holy Orders.

4. Where any clerk in Holy Orders would but for the passing of this Measure have been liable to pay any fee, whether required by law or custom, to a legal officer in connection with his ordination, admission to a suffragan bishopric, deanery, archdeaconry, canonry, prebend, minor canonry, benefice or

perpetual curacy, resignation from any such office, licence or permission to officiate or preach in any place or licence under any of the provisions of the Pluralities Act, 1838, the liability for such fee in relation to any act done or duty performed after the passing of this Measure shall be transferred as follows:—

- (a) in respect of fees payable to any legal officer holding office in relation to a province, to the archbishop of that province ; and
- (b) in respect of fees payable to any legal officer holding office in relation to a diocese or archdeaconry to the bishop of that diocese or of the diocese in which the archdeaconry is situated, as the case may be ; and
- (c) in respect of fees payable to any legal officer holding office in relation to a cathedral church, to the capitular revenues of that cathedral church.

5. Where an archbishop or bishop has paid any sum—

- (a) by virtue of the foregoing section of this Measure, or
- (b) by virtue of any order made under section one of this Measure, where the liability to pay that sum was imposed upon him as archbishop or bishop,

Reimbursement of Archbishop or Bishop.

the Commissioners shall reimburse that sum to the archbishop or bishop.

6.—(1) Where section two of this Measure or any order framed under that section is inconsistent with a Private or Local or Personal Act affecting a parish, the parochial church council of that parish, or if there is no parochial church council the incumbent or minister, may make an application to the Commissioners requesting them to frame a draft scheme providing for the amendment or repeal of such Act to enable that section or any order framed thereunder or any provisions thereof to apply to that parish, and if a scheme comes into operation in accordance with the succeeding provisions of this section, such Act shall to that extent be amended or repealed.

Private, Local and Personal Acts.

(2) If the Commissioners receive an application under the preceding subsection they may frame a draft scheme containing such provisions as aforesaid and shall—

- (a) send a copy of the draft scheme to the bishop of the diocese in which the parish is situated, the parochial church council, if any, the incumbent or minister of the parish and any person whose power of fixing fees or whose right to receive fees is affected by the draft scheme, together with a notice that consideration will be given to any representations sent in writing to them before such date (which shall not be less than one

month from the date of the sending of the notice) as may be specified in the notice ;

- (b) cause a copy of the draft scheme to be posted for a period of not less than one month on the principal door of the church of the parish, or of at least one of such churches if there be more than one, together with a notice that consideration will be given to any representations sent in writing to them before such date (which shall not be less than one month from the date when the copy of the draft scheme was first posted), as may be specified in the notice ;
- (c) publish an advertisement in at least one local newspaper circulating in the parish stating the purport of such draft scheme and at what place in the parish it may be inspected (which may be the church door as provided in the preceding paragraph of this subsection or such other place as the Commissioners may decide) and that consideration will be given to any representations sent in writing to them before such date (which shall not be less than one month from the date when the advertisement was published), as may be specified in the advertisement.

(3) The Commissioners shall consider all representations made to them in pursuance of the provisions of the preceding subsection and may make such amendments in the draft scheme as they shall think fit. When the periods ending on the dates specified in the notices sent or posted under the provisions of paragraphs (a) and (b) of that subsection and in the advertisement published under the provisions of paragraph (c) of that subsection have expired, and the Commissioners have considered all such representations, if any, the Commissioners may seal the draft scheme with such amendments, if any.

(4) As soon as may be after a scheme has been sealed by the Commissioners they shall lay it before Parliament and thereupon subsection (1) of section four, subsection (1) of section five and subsection (1) of section seven of the Statutory Instruments Act, 1946, shall apply to the scheme as if it were a statutory instrument within the meaning of that Act and as if this Measure were an Act providing that the scheme should be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) If no resolution is passed by either House of Parliament for the annulment of the scheme under the provisions of the preceding subsection the Commissioners shall send copies of the scheme to every person or body specified in paragraph (a) of subsection (2) of this section, and shall publish in the

London Gazette a notice stating that they have made the scheme and specifying a place where copies of the scheme may be obtained.

(6) A scheme made under this section shall come into operation upon the date of publication of the notice under the preceding subsection or upon such later date as may be specified in the scheme, and shall have the same force and effect as an order framed under section two of this Measure.

(7) After a scheme has come into operation by virtue of this section the Commissioners may frame further schemes in substitution therefor or revoking or amending such scheme or schemes in whole or in part either on the application of the parochial church council or, if there is no parochial church council, the incumbent or minister, or of their own motion, and the provisions of this section shall apply to such further schemes.

7. In this Measure the following expressions have the meanings hereby respectively assigned to them:—

“canonry” includes any canonry, whether or not any remuneration is payable in connection therewith, the holder of which is entitled by virtue of his office to membership of the chapter of a cathedral church;

“Commissioners” means the Church Commissioners;

“minor canonry” includes any office by whatever name known the holder of which performs the duties of a minor canon in a cathedral church;

“parish” means any ecclesiastical parish or district, parochial chapelry or other place the incumbent or minister whereof either is entitled to retain for his own benefit or is under a duty to pay over to another clerk in holy orders the fees chargeable in respect of the performance of church offices.

8.—(1) The provisions of the Acts and Measure mentioned in Part I of the Schedule to this Measure, which fix certain fees in payment for the performance of certain duties specified in the provisions, are repealed to the extent specified in the third column of that Part, but any person who would have been liable but for the passing of this Measure to pay any fee by virtue of any such provision shall continue to be liable unless such liability ceases as a result of an order made under the provisions of this Measure or another fee is substituted by such order.

(2) The provisions of the Acts and Measures mentioned in Part II of the Schedule to this Measure are repealed to the

extent specified in the third column of that Part, but any order made under the said Acts or Measures shall remain in force until replaced or otherwise revoked by an order under this Measure.

Extent. 9. This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands or either of them as defined by the Channel Islands (Church Legislation) Measures, 1931 and 1957, in accordance with the provisions of those Measures.

Short Title. 10. This Measure may be cited as the Ecclesiastical Fees Measure, 1962.

Section 8.

SCHEDULE

ENACTMENTS REPEALED

PART I

<i>Session and Chapter</i>	<i>Short Title</i>	<i>Extent of Repeal</i>
6 & 7 Will. 4. c. 71.	The Tithe Act, 1836. ...	In section sixty-four the words from " and on payment " to " or extract ".
6 & 7 Will. 4. c. 86.	The Births and Deaths Registration Act, 1836.	So much of section thirty-five as relates to the payment of fees for searches of registers of baptisms and of burials in church-yards and for certified copies thereof.
1 & 2 Vict. c. 106.	The Pluralities Act, 1838.	In section six the words from " and for such licence or dispensation there shall be paid " to " two shillings and no more " and the words " nor any other fee, save as herein-before mentioned "; section forty-seven; in section fifty the words " upon payment of three shillings, and no more "; section eighty-two; in section one hundred and two the words " upon payment of three shillings and no more " and the words from " Provided always " to " three shillings and no more ".
30 & 31 Vict. c. 133.	The Consecration of Churchyards Act, 1867.	Section three.
34 & 35 Vict. c. 45.	The Sequestrations Act, 1871.	In the Schedule the words " Section eighty-two—Fee for licence ".
6 & 7 Geo. 6. No. 1.	The New Parishes Measure, 1943.	Section three, paragraph (3), proviso (b); section ten, subsection (3).

PART II

<i>Session and Chapter</i>	<i>Short Title</i>	<i>Extent and Repeal</i>
1 & 2 Vict. c. 106.	The Pluralities Act, 1838.	Section one hundred and thirty-one.
30 & 31 Vict. c. 135.	The Ecclesiastical Fees Act, 1867.	The whole Act.
1 & 2 Geo. 6. No. 4.	The Ecclesiastical Commissioners (Powers) Measure, 1938.	Section one.
2 & 3 Geo. 6. No. 2.	The Ecclesiastical Officers Remuneration Measure, 1939.	The whole Measure.
7 & 8 Eliz. 2. No. 2.	The Vacancies in Sees Measure, 1959.	Section eight.

Table of Enactments referred to in this Measure

Short Title	Session and Chapter
Tithe Act, 1836	6 & 7 Will. 4. c. 71.
Births and Deaths Registration Act, 1836 ...	6 & 7 Will. 4. c. 86.
Pluralities Act, 1838	1 & 2 Vict. c. 106.
Consecration of Churchyards Act, 1867 ...	30 & 31 Vict. c. 133.
Ecclesiastical Fees Act, 1867	30 & 31 Vict. c. 135.
Sequestrations Act, 1871	34 & 35 Vict. c. 45.
Burial Act, 1900	63 & 64 Vict. c. 15.
Cremation Act, 1902	2 Edw. 7. c. 8.
Channel Islands (Church Legislation) Measure, 1931	21 & 22 Geo. 5. No. 4.
Ecclesiastical Commissioners (Powers) Measure, 1938	1 & 2 Geo. 6. No. 4.
Ecclesiastical Officers Remuneration Measure, 1939	2 & 3 Geo. 6. No. 2.
New Parishes Measure, 1943	6 & 7 Geo. 6. No. 1.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Marriage Act, 1949... ..	12 & 13 Geo. 6. c. 76.
Channel Islands (Church Legislation) Measure, 1931 (Amendment) Measure, 1957	5 & 6 Eliz. 2. No. 1.
Vacancies in Sees Measure, 1959	7 & 8 Eliz. 2. No. 2.